

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.:

-----X
CHANTAE EDWARDS, GLENORA EDWARDS and KYLE
EDWARDS.

SUMMONS

Plaintiffs,

Plaintiffs designate
KINGS County as the
place of trial.

-against-

The basis of venue
is: where the Tort
arose

THE CITY OF NEW YORK, DET. NICHOLAS
SCHIRALDI (Shield No. 3272) and JOHN DOES
1-10 members of the NYPD including the
NYPD Warrant Squad who were present at
Plaintiffs' Residence on February 25, 2022,
who are presently unknown to Plaintiffs,

The Tort arose in:
KINGS COUNTY, State
of New York

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
MAY 25, 2023



KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.

Attorneys for Plaintiffs
CHANTAE EDWARDS, GLENORA EDWARDS and
KYLE EDWARDS
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TO: **The City of New York**
c/o NYC Law Department
100 Church Street
New York, NY 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X

CHANTAE EDWARDS, GLENORA EDWARDS and KYLE
EDWARDS.

Index No.:

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, DET. NICHOLAS
SCHIRALDI (Shield No. 3272) and JOHN DOES
1-10 members of the NYPD including the
NYPD Warrant Squad who were present at
Plaintiffs' Residence on February 25, 2022,
who are presently unknown to Plaintiffs,

Defendants.

-----X

Plaintiffs **CHANTAE EDWARDS, GLENORA EDWARDS** and **KYLE EDWARDS**
by their attorneys THE VESSUP LAW FIRM P.C. complaining of the
Defendants, respectfully allege upon information and belief, as
follows:

1. At all times herein mentioned, Plaintiff **CHANTAE EDWARDS**
was and still is a resident of the County of Kings, City and State
of New York.

2. At all times herein mentioned, Plaintiff **GLENORA EDWARDS**
was and still is a resident of the County of Kings, City and State
of New York.

3. At all times herein mentioned, Plaintiff **KYLE EDWARDS** was
and still is a resident of the County of Kings, City and State of
New York.

4. At all times herein mentioned, Defendant, **THE CITY OF NEW**

YORK was, and still is a municipal corporation duly organized existing by virtue of the laws of the State of New York.

5. Upon information and belief, at all times herein mentioned, **Defendants DET. NICHOLAS SCHIRALDI (Shield No. 3272) and JOHN DOES # 1-10, members of the NYPD including the NYPD Warrant Squad who were present at Plaintiffs' Residence on February 25, 2022, who are presently unknown to Plaintiffs** were and are members of service of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and/or employees of the Defendant, **THE CITY OF NEW YORK**.

6. Upon information and belief, at all times herein mentioned, **Defendants DET. NICHOLAS SCHIRALDI (Shield No. 3272) and JOHN DOES # 1-10 members of the NYPD including the NYPD Warrant Squad who were present at Plaintiffs' Residence on February 25, 2022, who are presently unknown to Plaintiffs**, encountered Plaintiffs during the performance of their duties as Officers and/or Detectives of Defendant **THE CITY OF NEW YORK**.

7. On or about May 26, 2022, the Plaintiffs timely served a Notice of Claim, in writing and sworn to on his behalf, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY OF**

NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

8. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

9. The Plaintiff has complied with the request of the municipal Defendant for an oral examination pursuant to Section 50h of the General Municipal Law in that 50h hearings were held on August 9, 2022.

BACKGROUND FACTS

10. On February 25, 2022 at or about 6:00am, approximately one dozen members of the New York City Police Department were at the residence located at 355 East 35th Street Brooklyn, NY.

11. Upon arriving on the block, these members of the NYPD used force to enter the residence, causing damage to the front door of the home in the process. They made no attempt to gain entry to the premises without using force.

12. Plaintiffs were lawfully present within the home and in fact were sleeping at the time of the entry.

13. Upon arriving in the residence, the Defendants went to

the second floor of the home and took the Plaintiffs into custody by forcing them onto the floor, restricting them within certain rooms and in certain instances handcuffing them.

14. The Defendants then conducted a search of the second floor of the home and in the process caused significant property damage, and mess within the residence that would cost thousands of dollars to repair, replace and clean.

15. The Defendants claimed that they were acting pursuant to a lawful search warrant, however no such warrant was produced despite several requests by Plaintiffs.

16. Additionally, Plaintiff KYLE EDWARDS was arrested and detained in police custody for approximately 24 hours until all charges against him were dismissed.

AS AND FOR A FIRST CAUSE OF ACTION

17. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "16" with the same force and effect as if restated herein.

18. That on February 25, 2022 at approximately 6:00am at 355 East 35th Street in Brooklyn, NY, Defendants jointly and severally in their capacity as police officers, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested Plaintiff **KYLE EDWARDS**.

19. Defendants restrained Plaintiff **KYLE EDWARDS**, interfered with his liberty, and took him into custody without proper

authority.

20. At no time did Plaintiff consent to the unlawful conduct of the Defendants.

21. Defendants' conduct was not privileged or otherwise protected by law.

22. As a result of Defendants' conduct Plaintiff was damaged.

AS AND FOR A SECOND CAUSE OF ACTION

23. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "23" with the same force and effect as if restated herein.

24. That on February 25, 2022 at approximately 6:00am at 355 East 35th Street in Brooklyn, NY, Defendants jointly and severally in their capacity as police officers, did intentionally confine Plaintiffs **CHANTAE EDWARDS, GLENORA EDWARDS and KYLE EDWARDS**.

25. That at all times Plaintiffs were aware of their confinement.

26. At no time did Plaintiffs consent to the confinement or any other unlawful conduct of Defendants.

27. Defendants' conduct was not privileged or otherwise protected by law.

28. As a result of Defendants' conduct Plaintiff was damaged.

AS AND FOR A THIRD CAUSE OF ACTION

29. Plaintiffs repeat, reiterate and reallege each of the allegations provided in paragraphs "1" through "28" with the same force and effect as if restated herein.

30. That on February 25, 2022 at approximately 6:00am at 355 East 35th Street in Brooklyn, NY, Defendants jointly and severally in their capacity as police officers, did commit an assault upon Plaintiffs **CHANTAE EDWARDS, GLENORA EDWARDS and KYLE EDWARDS** by approaching them with outstretched arms, weapons and handcuffs thereby intentionally creating a reasonable apprehension of an imminent harmful or offensive contact.

31. Plaintiffs experienced a reasonable apprehension of a harmful or offensive contact as a result of Defendants' conduct.

32. At no time did either Plaintiff consent to the unlawful conduct of the Defendants.

33. Defendants' conduct was not privileged or otherwise protected by law.

34. As a result of Defendants' conduct Plaintiffs were damaged.

AS AND FOR A FOURTH CAUSE OF ACTION

35. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "34" with the same force and effect as if restated herein.

36. That on February 25, 2022 at approximately 6:00am at 355

East 35th Street in Brooklyn, NY, Defendants jointly and severally in their capacity as police officers, committed a harmful or offensive touching upon Plaintiffs **CHANTAE EDWARDS, GLENORA EDWARDS and KYLE EDWARDS** by physically assaulting them, pushing, shoving, handcuffing and/or ultimately arresting them.

37. At no time did either Plaintiffs consent to the unlawful conduct of the Defendants.

38. Defendants' conduct was not privileged or otherwise protected by law.

39. As a result of Defendants' conduct Plaintiffs were damaged.

AS AND FOR A FIFTH CAUSE OF ACTION

40. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "39" with the same force and effect as if restated herein.

41. That on February 25, 2022 at approximately 6:00am at 355 East 35th Street in Brooklyn, NY, Defendants jointly and severally in their capacity as police officers, did commit a trespass onto the Plaintiffs' property by using force to enter and remain on the property without legal cause or authority and thereby interfering with Plaintiffs' quiet enjoyment of their property.

42. Plaintiffs did not grant Defendants access to their home.

43. At no point did Plaintiffs consent to the unlawful conduct of Defendants.

44. Defendants' conduct was not privileged or otherwise protected by law.

45. As a result of Defendants' conduct, Plaintiffs were damaged.

AS AND FOR A SIXTH CAUSE OF ACTION

46. Plaintiffs repeat, reiterate and reallege each of the allegations provided in paragraphs "1" through "45" with the same force and effect as if restated herein.

47. That on February 25, 2022 at approximately 6:00am at 355 East 35th Street in Brooklyn, NY, Defendants jointly and severally in their capacity as police officers, intentionally interfered with Plaintiffs' possession, use and control of the personal property they maintained within their home.

48. At no point did Plaintiffs consent to the unlawful conduct of Defendants.

49. As a result of Defendants' conduct, Plaintiffs were damaged.

AS AND FOR A SEVENTH CAUSE OF ACTION

50. Plaintiffs repeat, reiterate and reallege each of the allegations provided in paragraphs "1" through "49" with the same force and effect as if restated herein.

51. That on February 25, 2022 at approximately 6:00am at 355 East 35th Street in Brooklyn, NY, Defendants jointly and severally in their capacity as police officers, engaged in extreme and

outrageous conduct by, among other conduct, entering Plaintiffs' home without legal cause or authority with the intention, or alternatively, in reckless disregard of a substantial probability of causing Plaintiffs severe emotional distress.

52. Defendants conduct actually and proximately resulted in severe emotional distress to plaintiffs.

53. At no point did Plaintiffs consent to the unlawful conduct of Defendants.

54. As a result of Defendants' conduct, Plaintiffs were damaged.

AS AND FOR A EIGHTH CAUSE OF ACTION

55. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "54" with the same force and effect as if restated herein.

56. Plaintiffs bring this cause of action pursuant to 42 USC § 1983.

57. That on February 25, 2022 at approximately 6:00am at or near 355 East 35th Street in Brooklyn, NY Defendants jointly and severally in their capacity as police officers falsely arrested Plaintiffs.

58. That on February 25, 2022 at approximately 6:00am at or near 355 East 35th Street in Brooklyn, NY Defendants jointly and severally in their capacity as police officers falsely imprisoned Plaintiffs.

59. That on February 25, 2022 at approximately 6:00am at or near 355 East 35th Street in Brooklyn, NY Defendants jointly and severally in their capacity as police officers civilly assaulted Plaintiffs.

60. That on February 25, 2022 at approximately 6:00am at or near 355 East 35th Street in Brooklyn, NY Defendants jointly and severally in their capacity as police officers committed a battery upon Plaintiffs.

61. That on February 25, 2022 at approximately 6:00am at or near 355 East 35th Street in Brooklyn, NY Defendants jointly and severally in their capacity as police officers used excessive and unlawful force against Plaintiffs.

62. That on February 25, 2022 at approximately 6:00am at or near 355 East 35th Street in Brooklyn, NY Defendants jointly and severally in their capacity as police officers trespassed on Plaintiffs' real property.

63. That on February 25, 2022 at approximately 6:00am at or near 355 East 35th Street in Brooklyn, NY Defendants jointly and severally in their capacity as police officers interfered with Plaintiffs' possession, use and control of the personal property within their home.

64. The afore-described actions of the Defendants resulted in the Plaintiffs being deprived of the following rights under the United States Constitution:

- i. Freedom from assault to their person;

- ii. Freedom from battery to their person;
- iii. Freedom from false arrest;
- iv. Freedom from false imprisonment;
- v. Freedom from being subjected to excessive use of force;
- vi. Freedom from trespass;
- vii. Freedom from trespass to chattels.

65. Plaintiffs in no way consented to the conduct of Defendants.

66. The afore-described conduct of the Defendants was not privileged or otherwise protected by law.

67. As a result of Defendants' conduct Plaintiffs were damaged.

AS AND FOR A NINTH CAUSE OF ACTION

68. Plaintiffs repeat, reiterate and reallege each of the allegations provided in paragraphs "1" through "67" with the same force and effect as if restated herein.

69. In relevant part, 42 United States Code, Section 1985(3) provides that, *"If two or more persons in any State or Territory conspire... for the purpose of depriving, either directly or indirectly, any person... of the equal protection of the laws, or of equal privileges and immunities under the laws...; in any case of conspiracy set forth in this section, if one or more persons engaged therein do, or cause to be done, any act in furtherance of*

the object of such conspiracy, whereby another is injured in his person or property, or deprived of having and exercising any right or privilege of a citizen of the United States, the party so injured or deprived may have action for the recovery of damages occasioned by such injury or deprivation, against any one or more of the conspirators."

70. That on February 25, 2022 at approximately 6:00am at or near 355 East 35th Street in Brooklyn, NY Defendants jointly and severally in their capacity as police officers conspired to directly violate Plaintiffs' Federal Constitutional and Statutory rights, as enumerated above, by virtue of their cooperative effort to assault, batter, falsely arrest, falsely imprison, trespass against and interfere with the personal property of Plaintiffs without legal authority or consent.

71. That on February 25, 2022 at approximately 6:00am at or near 355 East 35th Street in Brooklyn, NY Defendants jointly and severally in their capacity as police officers furthered the conspiracy by actually committing the assault, battery, false arrest, false imprisonment, trespass against Plaintiffs' real property and interference with the personal property of Plaintiffs.

72. As a result of the Defendant's conduct, Plaintiffs suffered deprivations of their rights guaranteed by the United States Constitution, the laws of the United States and the State of New York.

73. As a result of the Defendants' unlawful conduct Plaintiffs

were damaged.

AS AND FOR A TENTH CAUSE OF ACTION

74. Plaintiffs repeats, reiterates, and realleges each of the allegations provided in Paragraphs "1" through "73" with the same force and effect as if restated herein.

75. Defendants, jointly and severally, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of **THE CITY OF NEW YORK** and/or NYPD that is forbidden by the United States Constitution.

76. The aforementioned customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and/or the NYPD included, but were not limited to, arresting citizens without probable cause, manufacturing evidence and/or engaging in falsification in an effort to secure convictions and achieve ulterior motives like overtime compensation.

77. Additionally, **THE CITY OF NEW YORK** engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its police officers and detectives that was the driving force behind the violation of Plaintiffs' rights as described herein.

78. By failing to properly recruit, screen, train, discipline and supervise its officers, including the individually named Defendants herein, **THE CITY OF NEW YORK** has tacitly authorized, ratified, sanctioned and/or impliedly authorized Defendants' acts

complained of herein.

79. The foregoing customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiffs **CHANTAE EDWARDS, GLENORA EDWARDS and KYLE EDWARDS**.

80. The foregoing customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiffs **CHANTAE EDWARDS, GLENORA EDWARDS and KYLE EDWARDS** as alleged herein.

81. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiffs constitutional rights.

82. All of the foregoing acts by Defendants deprived Plaintiffs of federally protected rights as enumerated above.

83. As a result of the foregoing, Plaintiffs **CHANTAE EDWARDS, GLENORA EDWARDS and KYLE EDWARDS** are entitled to compensatory damages in an amount to be fixed by a jury.

AS AND FOR A NINTH CAUSE OF ACTION

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "83" with full force and effect as if fully set forth herein.

85. Defendant **THE CITY OF NEW YORK** is vicariously liable for

the acts of its employees and agents who were on duty and acting within the scope of their employment when they engaged in the wrongful conduct described herein.

86. As a result of afore-described conduct of the Defendants, Plaintiffs **CHANTAE EDWARDS, GLENORA EDWARDS and KYLE EDWARDS**, are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, Plaintiffs CHANTAE EDWARDS, GLENORA EDWARDS and KYLE EDWARDS demand judgment and prays for the following relief, jointly and severally, against the Defendants:

- a. full and fair compensatory damages in an amount to be determined by a jury;
- b. punitive damages against the individual Defendant in an amount to be determined by a jury;
- c. reasonable attorney's fees and the costs and disbursements of this action; and
- d. such other and further relief as appears just and proper.

Dated: JAMAICA, NEW YORK
MAY 25, 2023



Kareem R. Vessup
THE VESSUP LAW FIRM, P.C.
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ATTORNEY VERIFICATION

KAREEM R. VESSUP, an attorney duly licensed to practice before the Courts of this State affirms the following pursuant to CPLR §2016 and under the penalty of perjury:

That affirmant is the attorney for the Plaintiffs in the action within; that affirmant has read the foregoing

COMPLAINT

and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true.

The reason that this verification is not made by plaintiffs and is made by affirmant is that plaintiffs are not presently in the county where the attorneys for the plaintiffs has its office.

Affirmant further says that the source of affirmant's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from investigations made on behalf of said plaintiffs.

DATED: JAMAICA, NEW YORK
MAY 25, 2023


KAREEM R. VESSUP ESQ. _____